

PART A

Introduction

Data Collection has significantly affected the way modern tech industry works. From social networking applications to online multiplayer games, OTT streaming services to a simple web search, our data is collected everywhere and it affects our experience over the internet. Data collection has now evolved beyond traditional way of tracking into personal spaces like E-mails. For this assignment, I have decided to take one such lawsuit which concerns Google (Alphabet), the trillion dollar tech tycoon. Google has had a notorious reputation when it comes to violating GDPR and UK consumer regulations. For this essay, we will be examining the fine published by France's CNIL upon GOOGLE IRELAND LIMITED and GOOGLE LLC.

Following a complaint on 24th August 2022, CNIL conducted inspections on the GMAIL messaging service and on the process of creating a google account. The investigations revealed two key breaches : inserting advertisements disguised as emails in Gmail inboxes without consent and deploying manipulative cookie consent banners during account creating. For these two breaches, Google was fined 325 000 000 Euros.

From my understanding of the breaches, I have identified two key ethical issues :

- 1) Undermined user autonomy through dark patterns and deceptive advertising,
- 2) The lack of explicability and accountability.

The framework to be used for the analysis of this case would be Principalism (Floridi and Cowls) because Autonomy – captures the consent manipulation, non maleficence – captures the privacy harm and explicability captures both the intelligibility failure and the accountability failure.

The Case

Cookies, are small text files which are placed on user's devices to track browsing behaviour, log activity but under the EU ePrivacy Directive, placing non essential cookies requires informed and freely given consent of the user.

Breach 1 (Gmail advertising) : CNIL investigated Gmail's 'smart feature' inbox organization. When users activated this setting, their inbox was divided into 'primary', 'promotions', and 'social' tabs. CNIL found that google had inserted advertisements which were designed to look like genuine emails within the promotions and social tabs without obtaining the consent of the user. Relying on a 2021 ruling by CJEU, CNIL classified these ads as direct marketing by email because they appeared in a space reserved for private communications. Even after google had made visual changes in 2023, CNIL found that the ads still could not be clearly distinguished from real emails. This breach affected 53 million users in France alone.

Breach 2 (Cookie dark patterns): CNIL also found that during Google account creation, users were steered toward accepting cookies for personalised advertising. Refusing personalised ad cookies was more difficult than accepting them until October 2023, when Google added an equally accessible 'Refuse' button. Again, users were not informed that cookie-based advertising was a condition of accessing Google's services. CNIL ruled consent was neither free nor informed. This breach affected over 74 million accounts in France..

Sanctions: CNIL imposed fines totalling €325 million and ordered google to cease both practices within six months, with a €100,000 per day penalty for non-compliance. CNIL emphasized that google holds a central position in online advertising and that Gmail is the world's second most-used email service. Notably, CNIL pointed out that Google had already been sanctioned twice (2020 and 2021) for cookie breaches demonstrating a pattern of repeated non-compliance.

Ethical Issue 1 – Undermined Autonomy

autonomy: Floridi and Cowls (Section 3.3) defines autonomy as requiring humans to hold meaningful decision making power over automated decision making of machines, which should be restricted should a human wish to do so. When we interact with data systems we may cede some control but this should be genuine and an informed choice.

During google's account creation, the interface steered users toward accepting personalized advertising cookies, refusing was harder than accepting. This was a socially engineered act. It undermines the meta-autonomy , where users were given a choice but the design architecture systematically directed them toward one outcome. The 'choice' was illusory. Moreover, users weren't informed that advertising cookies were a condition of accessing google's services which means that their consent was not only unfree but uninformed.

The Gmail breach raises a different but related autonomy concern. Users who activated 'smart features' to organise their inbox did not consent to receiving advertisements disguised as emails. The ads were designed to look like genuine messages, blurring the boundary between personal communication and commercial content. This is a form of deception that undermines users' ability to make informed decisions about what they engage with in their own inbox. Véliz argues that personalised targeting is manipulative when it is hidden from view, likely to be deceptive, and misaligned with users' interests all of which apply here.

This issue can be better understood through Véliz's concept of power asymmetry, which highlights how companies and governments possess significantly more data and analytical capacity than individuals, while data practices remain largely opaque to users. In this context, Google engaged in risky data practices, such as embedding disguised advertisements and designing manipulative consent mechanisms, while users bore the negative consequences, including loss of privacy and the manipulation of their attention and decision-making. Zuboff (2015) situates this within the framework of surveillance capitalism, where Google's business model relies on the extraction of behavioural data. Both practices, the hidden advertisements and dark pattern consent designs function to facilitate and reinforce this data extraction.

Ethical Issue 2 – Lack of Explicability and Accountability

Floridi and Cowls (2019, Section 3.5) identify explicability as the fifth principle of AI ethics, comprising two key dimensions: intelligibility and accountability. Intelligibility addresses the question of how a system works, requiring that its processes be understandable to those affected by it. Accountability, in contrast, concerns who is responsible for the system's outcomes and decisions. They argue that explicability is the "crucial missing piece" that enables the effective application of all other ethical principles. Without a clear understanding of how AI systems function and who is answerable for their impacts, it becomes difficult to assess whether these systems are beneficent, non-maleficent, just, or respectful of human autonomy..

In the case of Google's data practices, there was a clear failure of intelligibility. When users created a Google account, they encountered a consent interface that did not adequately explain what they were agreeing to. The CNIL found that there was no explicit indication that accepting advertising cookies was a condition for accessing Google's services. As a result, users were unable to fully understand the scope, value, and consequences of their choices. This lack of clarity meant that the system's underlying data practices remained opaque to those most affected by them. Consequently, this represents a textbook failure of intelligibility, where users were denied meaningful insight into how their data was being collected and used.

The Gmail advertising issue makes the intelligibility problem even worse. Users who saw ads in the Promotions and Social tabs often could not clearly tell them apart from real emails. Even after Google introduced some visual changes in April 2023, CNIL still found that these ads were not clearly distinguishable. This means users couldn't properly understand what they were actually seeing in their own inbox. If someone cannot tell whether a message is a personal email or a paid advertisement, then they don't really understand how the system is working. Mittelstadt points out that data systems are often opaque, where no single person fully understands how they are designed or function. In the Gmail case, this opacity goes even further, because even the end user is left confused, unable to identify what is advertising and what is genuine communication

The CNIL decision clearly shows an accountability problem. Google had already been fined before in 2020 and 2021 for similar cookie-related issues, but still continued with these practices. CNIL found that both Google LLC and Google Ireland Limited were jointly responsible, since both were involved in deciding how cookies were used and how data was processed for advertising. Even though the company structure is complex, responsibility could not just be shifted or avoided. This reflects what Floridi and Cowls warn about, that when responsibility is spread across different entities and jurisdictions, it becomes much harder to actually hold someone accountable. It creates a situation where everyone is involved, but no one is fully answerable. Véliz also stresses this in her principles, especially the need to have a clear chain of responsibility so that when something goes wrong, it is clear who is responsible.

Overall, the lack of explicability makes the other ethical principles weak or even ineffective. If users do not properly understand what they are agreeing to, they cannot really exercise autonomy in any meaningful way, which comes from the

failure of intelligibility. At the same time, when responsibility is spread across large corporate structures, harms cannot be easily addressed, showing a failure of accountability. Because of this, the system ends up disadvantaging users at both levels. This is why Floridi and Cowls argue that explicability is an enabling principle, since without it, the other principles like fairness, autonomy, or harm prevention cannot properly work in practice.

Floridi and Cowls' principlist framework is well suited for analysing this case because it allows a structured and multi-dimensional evaluation of the ethical issues involved. The five principles beneficence, non-maleficence, autonomy, justice, and explicability together provide a strong lens to assess different aspects of Google's data practices. Rather than focusing on one dimension, principlism makes it possible to examine how harms are created, how users are affected, and how responsibility is distributed. For example, non-maleficence highlights privacy harms and manipulation, while autonomy focuses on whether users could make informed choices. Justice draws attention to the imbalance of power between Google and its users, and explicability helps assess transparency and accountability. This allows the framework to capture the complexity of the situation more effectively.

A key advantage of this framework is explicability, which most other ethical approaches do not clearly address. It focuses on intelligibility and accountability, meaning whether users can understand how a system works and who is responsible. This is critical here because both breaches are not just legal issues, but problems of understanding and responsibility. Users could not properly understand cookie consent, and they could not clearly distinguish ads from real emails in Gmail. At the same time, responsibility was spread across corporate entities, making accountability harder to assign. Other frameworks may identify harm or lack of consent, but they do not directly address these deeper issues. Principlism makes these failures visible as ethical problems, not just technical or compliance ones.

At the same time, principlism does have its limitations. As Mittelstadt argues, high-level ethical principles are often too abstract and vague to guide real-world decision making on their own. Concepts like fairness, transparency, or accountability can mean different things in different contexts, so they don't always translate easily into concrete actions. This case actually shows that quite clearly. Google was already operating in an environment where ethical principles around privacy and consent were well known, yet this did not stop problematic practices from happening. It took regulatory intervention by CNIL, along with significant financial penalties, to push for change. And even then, CNIL still found that Google had not fully complied. This suggests that principles alone are not enough. They need to be supported by strong regulation, enforcement, and clearer accountability mechanisms to actually make a difference in practice.

PART B:

The CNIL case shows clear ethical failures in both autonomy and explicability, particularly in how cookie consent was designed and how advertising appeared in Gmail. Users were not given a real opportunity to make informed choices, and at the same time, the systems they interacted with were not transparent or properly accountable. This raises a broader question of how responsible data practices should actually be governed in such contexts. Building on Mittelstadt's critique, this section argues that relying on ethical principles alone is not enough. Instead, effective governance requires a combination of regulation, organisational accountability, standardised design practices, and continuous enforcement to ensure that these principles are meaningfully applied in practice.

Mittelstadt (2019) argues that relying on high-level ethical principles is not enough to ensure responsible AI and data practices, especially when compared to fields like medicine. He identifies four key limitations. First, there is a lack of common aims and fiduciary duties. In medicine, professionals are expected to prioritise the well-being of patients, but in the tech sector, companies are primarily driven by profit and shareholder interests. This means the interests of developers and users are not naturally aligned. Second, AI development lacks a strong professional history and shared norms. Unlike medicine, where there is a clear idea of what it means to be a "good" practitioner, there is no widely accepted ethical identity or standard for data professionals.

Third, there are no well-established methods to translate abstract principles into concrete practice. Concepts like fairness, transparency, or accountability sound good in theory, but in reality, they are difficult to implement consistently across different systems and contexts. This often leaves developers to interpret principles in their own way, which can lead to inconsistent or weak application. Finally, accountability mechanisms are still limited. In many cases, it is difficult to assign responsibility when something goes wrong, especially in large organisations where decision-making is distributed across teams and jurisdictions.

Together, these limitations show that principles alone cannot guarantee ethical outcomes. Without shared goals, professional standards, practical implementation methods, and strong accountability structures, ethical principles risk remaining abstract ideals rather than actually shaping how systems are designed and governed in practice.

These limitations are clearly visible in the CNIL case. First, Google's primary duty is towards its shareholders, not its users. Designing cookie banners that maximise acceptance rates and placing ads in Gmail directly supports its advertising revenue model, rather than user welfare. There is no real fiduciary duty towards Gmail users, so their interests are not prioritised. Second, there were no strong professional norms preventing these practices. Nothing within the tech industry clearly stopped Google from disguising ads as emails or using manipulative consent flows. In fact, CNIL had to step in precisely because self-regulation did not work. Third, even though high-level ethical principles already existed, they did not translate into practice. Google has its own AI principles, and frameworks like the EU's Ethics

Guidelines for Trustworthy AI emphasise autonomy and transparency, but these did not result in clear, user-friendly consent designs or honest advertising distinctions. Finally, accountability mechanisms appear weak. Google was fined multiple times in 2020, 2021, and again in 2025 for similar cookie-related violations, which suggests that penalties alone are not enough. When fines are relatively small compared to advertising profits, they may not create strong incentives for real behavioural change.

Overall, this supports Mittelstadt's main argument that ethical principles on their own are not enough to ensure responsible practice. While principles provide a useful starting point, they do not guarantee that companies will actually follow them in meaningful ways. Without stronger enforcement, clearer accountability structures, and deeper structural changes in how companies operate, principles risk becoming more symbolic than effective. Mittelstadt describes this as creating a kind of false assurance, where organisations appear ethical without making substantial changes. Véliz makes a similar point, arguing that ethics can guide good regulation, but cannot replace it. In this sense, both ethics and regulation are necessary, and neither can work properly without the other.

Recommendation 1 – Escalating regulatory enforcement:

The CNIL case shows that one-off fines are not enough to change behaviour. Google was sanctioned multiple times, yet similar issues kept appearing. This suggests that penalties need to be stronger and more progressive. Regulators should adopt escalating enforcement mechanisms, where repeat violations lead to significantly higher fines, ideally tied to a percentage of global revenue rather than fixed amounts. The €100,000 per day compliance penalty introduced in the 2025 decision is a step in the right direction, because it creates ongoing pressure rather than a one-time cost. This also aligns with Véliz's idea that systems should default to privacy-protective settings, meaning companies should not benefit from designs that push users toward sharing more data by default.

Recommendation 2 – Standardised consent interfaces and advertising disclosure:

Another key issue is that companies currently have too much freedom in how they design consent flows and display ads. Since they have strong incentives to maximise user engagement and data sharing, this often leads to manipulative or unclear designs. Regulators should require standardised formats for cookie consent interfaces, ensuring that options are presented clearly, equally, and without nudging users toward acceptance. Similarly, there should be strict and uniform rules for labelling advertisements, especially in environments like email. Users should never have to guess whether something in their inbox is a real message or an ad. Clear visual markers, consistent across platforms, would directly address the intelligibility failures seen in the Gmail case.

Recommendation 3 – Shift from individual to organisational ethics:

Governance also needs to move beyond focusing only on individual design choices and instead address the broader organisational and economic structures behind them. As Mittelstadt points out, ethical problems in AI and data systems are often rooted in business models, not just isolated decisions. In Google's case, practices like dark patterns and disguised ads are not accidental, they are tied to a system

where revenue depends on maximising ad exposure and data collection. This means governance should target incentive structures, for example by introducing stricter limits on data-driven advertising or requiring companies to demonstrate that their systems do not systematically undermine user autonomy. Without addressing these underlying incentives, companies will continue to find ways around surface-level rules.

Recommendation 4 – Independent auditing and proactive compliance:

Finally, enforcement should not rely only on user complaints or external organisations raising issues. The CNIL case itself took years to resolve after a complaint was filed, which shows how slow reactive enforcement can be. Instead, there should be mandatory, regular audits of consent systems and advertising practices, carried out either by regulators or certified independent auditors. These audits should check for compliance with transparency, fairness, and accountability requirements before harm becomes widespread. Proactive oversight would reduce the delay between violation and enforcement, making governance more effective and preventing repeated breaches over time.

The 2025 CNIL decision against Google shows that everyday data practices, like cookie consent and advertising inside personal email, are not just technical features but real ethical problem areas. They raise serious concerns around autonomy, privacy, and accountability. Using Floridi and Cowls' principlist framework helps to clearly identify these issues. The case shows violations of autonomy through manipulated consent and misleading ad design, and failures of explicability where users could not properly understand systems or identify who was responsible. In that sense, the framework works well as a diagnostic tool.

At the same time, the case also proves the limits of principles on their own. As Mittelstadt argues, and as seen in Google being sanctioned multiple times over a few years, simply having ethical guidelines does not lead to better practices. Companies can still operate in ways that technically comply on the surface while continuing problematic behaviour underneath. What is missing is not more principles, but stronger ways to enforce them.

This means that real progress in data ethics depends on governance, not just theory. Stronger regulatory enforcement, clearer design standards, better organisational accountability, and proactive auditing are all necessary to make ethical principles actually work in practice. In the end, the challenge is not defining what is ethical, but making sure it is consistently followed.

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